

26PDUD01328 26PDUD01328

County: los-angeles

Division: Civil Law and Motion

Department: D

Hearing date: 2026-09-23

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=GLN%2CD%2C09%2F23%2F2026

Source SHA-256: c7bb4d7fa1b360b0c0937c9194fffbdfc6d3e1c177fcfea2c3948717397d4ca3

Case Number: 26PDUD01328 Hearing Date: September 23, 2026 Dept: D

SUPPLEMENTAL TENTATIVE RULING

Calendar: Add-on

Date: September 23, 2026

Case No: 26PDUD01328 Trial Date: Not yet set

Case Name: HUSPRF Reit LLC v. Tonetto, et al.

DEMURRER

[CCP § 430.10 subds. (e) and (f)]

Moving Party: Defendants, Rodrigo Tonetto and Solange Girardelle

Responding Party: Plaintiff, HUSPRF 290 North Hudson Ave LP

RELIEF REQUESTED:

Sustain demurrer to First Amended Complaint.

CAUSES OF ACTION: from First Amended Complaint

1) Unlawful Detainer

REQUEST FOR JUDICIAL NOTICE

The Court may take judicial notice of “[r]ecords of (1) any court of this state or (2) any court of record of the United States or of any state of the United States” and of “[o]fficial acts of the legislative, executive, and judicial departments of the United States and of any state of the United States.” (Evidence Code, § 452, subds. (c)-(d).)

Pursuant to Defendants’ request, the Court takes judicial notice of the following: (1) The FAC filed in this action, including the attached Three-Day Notice to Pay Rent or Quit; (2) Initial Notice of Non-Compliance issued by the City of Pasadena Rent Stabilization Department, dated March 24, 2025, concerning the subject property, stating that the property was out of compliance with Pasadena Charter Article XVIII due to its failure to register for fiscal years 2024 and 2025, and advising that no rent increase or upward adjustment of rent was authorized during the period of noncompliance; and (3) Rental Registration Certification issued by the City of Pasadena Rent Stabilization Department on June 17, 2025, concerning the subject property and stating that the property was then in compliance with its registration obligations under Pasadena Charter Article XVIII. (RJN, Exs. 1-3.)

SUMMARY OF FACTS:

HUSPRF 290 North Hudson Ave LP (“Plaintiff”) is the owner of real property located at 290 N. Hudson Avenue #103E, in Pasadena, CA 91101. Rodrigo Tonetto and Solange Girardelle (collectively, “Defendants”) are tenants in the property pursuant to a June 1, 2025 lease agreement. Plaintiff served Defendants with a 3-day notice to pay rent or quit on April 13, 2026. The FAC alleges that Defendants failed to comply with the requirements of the notice.

This matter originally came up for hearing on September 18, 2026. The Court’s ruling sustained the demurrer, with leave to amend, on the ground that it was unclear which, if any, exemption to the Tenant Protection Act (the “TPA”) applied to the subject property. Because the demurrer was sustained on this ground, the Court did not reach Defendants’ last argument that Plaintiff failed to plead facts demonstrating compliance with the City of Pasadena’s eviction control requirements. For the sake of completeness, the Court now issues this supplemental ruling to address that argument.

ANALYSIS:

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747; CCP, § 430.10, subd. (e).)

To sufficiently allege a cause of action, a complaint must allege all the ultimate facts—that is, the facts needed to establish each element of the cause of action pleaded. (Committee on Children’s Television, Inc. v. General Foods Corp. (1983) 35 Cal.3d 197, 212, superseded by statute as stated in Branick v. Downey Savings & Loan Assn. (2006) 39 Cal.4th 235, 242.) “[E]ach evidentiary fact that might eventually form part of the plaintiff’s proof need not be alleged.” (C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 872.)

In testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 966-67.) Courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228, disapproved on other grounds, Jones v. Lodge at Torrey Pines Partnership (2008) 42 Cal.4th 1158, 1162.) A demurrer, however, “does not admit contentions, deductions or conclusions of fact or law.” (Daar v. Yellow Cab Co. (1967) 67 Cal.2d 695, 713.)

A demurrer for uncertainty lies where the pleading is uncertain, ambiguous, or unintelligible. (CCP, § 430.10, subd. (f).)

“A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (Khoury v. Maly’s of California, Inc. (1993) 14 Cal.App.4th 612, 616 [disapproved on other grounds].) As a result, a special demurrer for uncertainty is not intended to reach failure to incorporate sufficient facts in the pleading, but it rather is directed only at uncertainty existing in the allegations already made. (People v. Taliaferro (1957) 149 Cal.App.2d 822, 825, disapproved on other grounds in Jefferson v. J.E. French Co. (1960) 54 Cal.2d

717, 719-720 [statute of limitations question].)

Where a complaint is sufficient to state a cause of action and to apprise a defendant of issues he is to meet, it is not properly subject to a special demurrer for uncertainty. (*Gressley v. Williams* (1961) 193 Cal.App.2d 636, 643 ["A special demurrer [for uncertainty] should be overruled where the allegations of the complaint are sufficiently clear to apprise the defendant of the issues which he is to meet"].)

Unlawful Detainer

A tenant is guilty of unlawful detainer when "the tenant continues in possession, in person or by subtenant, without the permission of the landlord, [...], after default in the payment of rent, pursuant to the lease or agreement under which the property is held, and three days' notice, excluding Saturdays and Sundays and other judicial holidays, in writing, requiring its payment, stating the amount that is due, the name, telephone number, and address of the person to whom the rent payment shall be made, and, if payment may be made personally, the usual days and hours that person will be available to receive the payment [...], or the number of an account in a financial institution into which the rental payment may be made, and the name and street address of the institution [...], or if an electronic funds transfer procedure has been previously established, that payment may be made pursuant to that procedure, or possession of the property, shall have been served upon the tenant and if there is a subtenant in actual occupation of the premises, also upon the subtenant." (CCP, § 1161 subd. (2).)

Accordingly, the basic elements of unlawful detainer for nonpayment of rent contained in CCP section 1161 subdivision (2) are "(1) the tenant is in possession of the premises; (2) that possession is without permission; (3) the tenant is in default for nonpayment of rent; (4) the tenant has been properly served with a written notice; and (5) the default continues after the three-day notice period has elapsed." (*Kruger v. Reyes* (2014) 232 Cal.App.4th Supp. 10, 16.)

"Due to the summary nature of such an action, a [notice to pay rent or quit] is valid only if the landlord strictly complies with the provisions of section 1161, subdivision 2." (*Levitz Furniture Co. v. Wingtip Communications, Inc.* (2001) 86 Cal.App.4th 1035, 1038.)

Defendants argue that the unlawful detainer claim fails because the FAC fails to plead facts showing compliance with the City of Pasadena eviction control requirements as set forth in Pasadena Charter Article XVIII and the applicable Pasadena Rental Housing Board regulations.

Pasadena Charter Article 1806, subdivision (a)(1), states that no landlord shall take any action to terminate a tenancy unless there has been a material breach of the lease agreement or "[t]he Tenant has failed, after receiving a Written Notice to Cease, to pay the Rent to which the Landlord is legally entitled under the Rental Housing Agreement, this Article, state, and any other local law. This condition does not include a failure to pay any separately charged fees."

Defendants argue that "If the recurring \$208.00 amounts are separately charged fees, their nonpayment cannot constitute just cause for eviction under section 1806(a)(1). If Plaintiff instead contends the amounts constitute Rent, Plaintiff must plead facts showing that it was legally entitled to demand those amounts as Rent."

The Court has taken judicial notice of the Initial Notice of Non-Compliance issued by the City of Pasadena Rent Stabilization Department, dated March 24, 2025, concerning the subject property, stating that the property was out of compliance with Pasadena Charter Article XVIII, and that no upward adjustment of rent shall be authorized if the landlord has failed to comply with any provisions of Article XVIII or orders or regulations. (RJN, Ex. 2.)

The Court has also taken judicial notice of the June 17, 2025, Rental Registration Certification issued by the City of Pasadena Rent Stabilization Department which states that the property was then in compliance with its registration obligations under Pasadena Charter Article XVIII. (RJN, Ex. 3.)

From the judicially noticed documents, the Court can conclude that, for some period of time, at least through March 24, 2025, Plaintiff received a notice stating that it was not authorized to increase rent at the subject property because the property was not in compliance with Article XVIII of the City of Pasadena Charter. (RJN, Ex. 2.) The Court can also conclude that, as of June 17, 2025, Plaintiff received a notice stating that the property was in compliance and that Plaintiff was authorized to increase the rent. (RJN, Ex. 3.) The missing link, however, is whether the \$208 monthly amounts alleged to have accrued beginning on June 1, 2025, and each month thereafter, represent rent that was legitimately due and owing, or instead, resulted from an improper rent increase or other separately charged fee. There is nothing currently before the Court which establishes the answer to that question.

The FAC alleges that Defendants were required to pay \$208 in rent from June 1, 2025 through April 1, 2026, resulting in \$2,388.00 in unpaid rent as of the date the Notice to Pay Rent or Quit was served. (FAC, § 13; Ex. 2 [Notice to Pay Rent or Quit].) The FAC alleges that Defendants failed to pay the outstanding rent or comply with the requirements of the Notice. (FAC, § 9.) In ruling on a demurrer, the Court must “assume that the complaint’s properly pleaded material allegations are true.” (Moore v. Regents of University of California (1990) 51 Cal.3d 120, 125) “The sole issue raised by a general demurrer is whether the facts pleaded state a valid cause of action, not whether they are true. No matter how unlikely or improbable, plaintiff’s allegations must be accepted as true for the purpose of ruling on the demurrer. (Citation omitted.) Furthermore, plaintiff’s possible inability or difficulty in proving the allegations of the complaint is of no concern. (Citation omitted.)” (Kerivan v. Title Ins. & Trust Co. (1983) 147 Cal.App.3d 225, 229.)

As the Court noted in its previous ruling on this matter, “If Plaintiff in fact imposed an improper rent increase, or if the \$208 monthly amounts constitute some category of charge unrelated to rent, either circumstance could constitute grounds to conclude that the unlawful detainer is not proper. However, nothing on the face of the FAC or in the judicially noticed documents establishes either proposition. These issues present factual disputes that are more appropriately resolved through discovery, and if necessary, at trial or on summary judgment, rather than on demurrer.” (9/18/2026 Minute Order.)

At trial or on a motion for summary judgment, the parties may present evidence such as rental ledgers, account records, notices of rent increases, bills for other charges, lease agreements and any other evidence tending to establish the nature and basis of the alleged \$208 monthly amounts. Such evidentiary considerations, however, are not properly before the Court on the instant demurrer.

Lastly, Defendants briefly argue that pursuant to Pasadena Charter section 1806, subdivision (k), Plaintiff was required to file a copy of the notice terminating the tenancy with the Rental Housing Board within three days after service of the notice. Defendants argue that there are no allegations in the FAC that Plaintiff filed the required notice. This argument is also a factual affirmative defense, not a legal deficiency on the face of the pleading.

Accordingly, the above analysis does not alter the Court’s September 18, 2026 Minute Order sustaining the demurrer, with leave to amend, based on the arguments addressed therein.

RULING:

Defendants Rodrigo Tonetto and Solange Girardelle’s Demurrer is SUSTAINED, with 15 days leave to amend.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.